

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SABRINA SOFIA CARO,

Petitioner

VS.

JOSE I. STULZER,

Respondent

) Case Number: FDI-15-784616

) Hearing Date: September 15, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF VISITATION (PARENTING TIME) AND ENFORCEMENT OF COURT
ORDER

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Sabrina Caro (Mother) and Respondent, Jose Stulzer (Father). There are two minor children subject to this proceeding: Sofia Stulzer (DOB: 08/29/12) and Jaziel Stulzer (DOB: 01/10/25).
- 2) On July 15, 2026, Father filed a Request for Order seeking, what the Court interprets, as an enforcement of the visitation orders as they pertain to the children's birthdays. Father is asking for make up time because he states Mother did not permit him to have his birthday time with the children this year. He gets the children on their birthdays in even years.
- 3) On August 11, 2026, Mother filed a Responsive Declaration in which she asks the Court to clarify the birthday schedule, to the extent it does not conflict with a June 9, 2025 Findings and Order After Hearing (*this Court did not locate a FOAH filed June 9, 2025, nor any other which purports to modify the parenting plan in 2025*).

- 4) On August 17, 2026, the Court held a readiness hearing and referred the parties to Family Court Services (FCS) Mediation on August 18, 2026 and set a return hearing on September 15, 2026.
- 5) On August 24, 2026, the parties entered into a stipulation and order, which provides that they will use communication application called AppClose.
- 6) On September 4, 2026, Father filed a Responsive Declaration. The Court notes that this is not an appropriate filing, as Father is the moving party. The Court will consider this filing a Reply to Mother's Responsive Declaration.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) Father's request for "make up" time is GRANTED. Father shall have care and custody of the minor children on any weekend he chooses from Friday after school through Sunday at 6:00 p.m. For starters, the Court was unable to locate an order from June of 2025. However, Judge Evangelista's order from 2021 is clear and not ambiguous. As such, Mother should have given Father the weekend for the children's birthdays. Given that Father was not provided this time, his request for "make up" time is granted. Father shall notify Mother of his intent to exercise "make up" time no later than two weeks from the makeup days of his choosing. All of Father's make up days shall be completed prior to December 31, 2026.
- 3) Mother's request for clarification of the birthday time is DENIED. The Court is clear to this Court.
- 4) Mother's request for "limited birthday visitation" is also DENIED.
- 5) Mother's request for modification of exchange location is DENIED, as Father states that the current exchange location is working well and Mother has not provided this Court with any basis by which such a modification would be warranted.
- 6) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other

1 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
2 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
3 proposed order after hearing directly to the court. Failure to submit the order after hearing within
4 10 days may allow the other party to prepare a proposed order and submit it to the court in
5 accordance with CA Rules of Court, Rule 5.125(d).
6
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24
25
26
27
28
29